

2021 WL 2491800
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United States District Court,
E.D. Texas, Tyler Division.

Bruce Cliett WILLIAMSON and
Maja Mason Steele, Plaintiffs,

v.

Billy Bob BRADY and [Long
Glade Lake, Inc.](#), Defendants.

CASE NO. 6:19-CV-00324-JCB-KNM

I

Signed 05/28/2021

Attorneys and Law Firms

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REPORT & RECOMMENDATION OF THE UNITED STATES MAGISTRATE JUDGE

[K. NICOLE MITCHELL](#), UNITED STATES
MAGISTRATE JUDGE

*1 Before the Court is Defendants Long Glade Lake, Inc. and Billy Bob Brady's Motion for Partial Judgment on the Pleadings and Alternative Motion for Partial Summary Judgment.¹ Plaintiffs have filed no response to

this motion. After due consideration, the Court **RECOMMENDS GRANTING IN PART** Defendants' motion.²

BACKGROUND

Plaintiffs Bruce Cliett Williamson and Maja Mason Steele reside or used to reside in homes built at the Long Glade Lake community ("Long Glade Lake"). Defendants Long Glade Lake, Inc. ("LGL") and Billy Bob Brady—the president of the LGL Board of Directors—operate the community.³ LGL, a corporation,⁴ owns the Long Glade Lake real property.⁵ The record suggests that tenants lease land from LGL and either build a home or purchase any existing home built on such land.⁶ Tenants are shareholders in the corporation.⁷

In their complaint, Plaintiffs allege that Defendants have committed violations under the federal and Texas fair housing acts and Texas property and tort law.⁸ In Counts I and IV, Plaintiffs allege under federal and state law that Defendants intimidated, coerced, or threatened them because of their aid of other Long Glade Lake residents—Mr. and Mrs. Garner—in those residents' exercise of their state and federal fair housing rights.⁹ In Count V, Plaintiffs allege Defendants violated [Tex. Prop. Code § 301.026](#) by preventing Plaintiff Steele from selling her home to minorities.¹⁰ In Count VI, Plaintiffs allege that Defendants violated [Tex. Prop. Code § 209.016](#) by adopting an unlawful provision in a dedicatory instrument.¹¹ In Count VII, Plaintiffs allege that Defendant Brady assaulted

Plaintiff Williamson, made a false police report, and subjected him to arrest and incarceration.¹² This Court has previously dismissed Counts II and III.¹³

*2 Plaintiffs filed suit on July 17, 2019, and Defendants filed their first motion to dismiss on November 12, 2019.¹⁴ Although Plaintiffs did not respond to the motion for eight months, their counsel stated at the July 2020 scheduling conference that they opposed the motion to dismiss.¹⁵ At the conference, the Court ordered counsel to file a motion for extension of time to file a response within the next couple of days.¹⁶ Plaintiffs' counsel did not do so.

On August 10, 2020, the Court ordered the Plaintiffs to show cause why the Court should not consider the motion to dismiss as unopposed.¹⁷ In response, Plaintiffs moved to amend their complaint, which the Court granted over Defendants' opposition.¹⁸ Soon after Plaintiffs filed an amended complaint in August 2020, Defendants filed a second motion to dismiss.¹⁹ When Plaintiffs again did not timely respond to the motion to dismiss, the Court ordered the Plaintiffs to show cause for their failure to respond.²⁰ The Court reminded Plaintiffs' counsel that it strictly enforces deadlines and that it was the final time the Court would enter a show cause order for a missed deadline in the case.²¹ Plaintiffs filed a response to the motion to dismiss.²² The Court recommended granting Defendants' motion and dismissing Counts II and III.²³ After neither party filed objections, the report

was accepted and Counts II and III were dismissed.²⁴

On November 24, 2020, Defendants filed a motion for judgment on the pleadings on the remainder of Plaintiffs' claims.²⁵ Defendants ask that the Court dismiss Counts I, IV, V, and VI with prejudice, and they ask that Count VII be dismissed without prejudice.²⁶ Plaintiffs have not filed a response. The Court has not issued another show cause order, consistent with its notice to Plaintiffs that they would no longer receive deadline reminders.²⁷ The motion is therefore unopposed.

STANDARD OF REVIEW

A. Judgment on the Pleadings

[Federal Rule of Civil Procedure 12\(c\)](#) permits any party to move for judgment on the pleadings after the pleadings are closed. A [Rule 12\(c\)](#) motion “is designed to dispose of cases where the material facts are not in dispute and a judgment on the merits can be rendered by looking to the substance of the pleadings and any judicially noticed facts.” *Great Plains Tr. Co. v. Morgan Stanley Dean Witter & Co.*, 313 F.3d 305, 312 (5th Cir. 2002) (quoting *Hebert Abstract Co. v. Touchstone Props., Ltd.*, 914 F.2d 74, 76 (5th Cir. 1990) (per curiam)). Motions for judgment on the pleadings are assessed under the same standard as [Rule 12\(b\)\(6\)](#) motions to dismiss. *In re Great Lakes Dredge & Dock Co. LLC*, 624 F.3d 201, 209–10 (5th Cir. 2010).

*3 When assessing the factual sufficiency of the pleadings, the court must accept all well-

pleaded facts as true. *Id.* at 210. “The primary focus is whether, in the light most favorable to the plaintiff, the complaint states a valid claim for relief.” *Victory Med. Ctr. Beaumont, L.P. v. Connecticut Gen. Life Ins. Co.*, No. 1:17-CV-48, 2018 WL 3467915, at *3 (E.D. Tex. July 17, 2018) (Crone, J.); *see Great Plains Tr. Co.*, 313 F.3d at 312; *Great Lakes*, 624 F.3d at 210.

A pleading must contain “a short and plain statement of the claim showing that the pleader is entitled to relief.” Fed. R. Civ. P. 8(a)(2). Therefore, to survive a Rule 12(c) motion, a complaint must include facts that “raise a right to relief above the speculative level” and into the “realm of plausible liability.” *Bell Atlantic Corp. v. Twombly*, 550 U.S. 544, 555, 557 n.5 (2007) (establishing Rule 12(b)(6) standard); *In re Katrina Canal Breaches Litig.*, 495 F.3d 191, 205 (5th Cir. 2007) (applying 12(b) principles to 12(c) motion). “A claim has facial plausibility when the plaintiff pleads factual content that allows the court to draw the reasonable inference that the defendant is liable for the misconduct alleged.” *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009) (citing *Twombly*, 550 U.S. at 556). “[C]onclusory allegations, unwarranted factual inferences, [and] legal conclusions” will not be accepted as true. *Great Lakes*, 624 F.3d at 210 (quoting *Ferrer v. Chevron Corp.*, 484 F.3d 776, 780 (5th Cir. 2007)). Although “detailed factual allegations” are not required, the complaint must have “more than an unadorned, the-defendant-unlawfully-harmed-me accusation.” *Iqbal*, 556 U.S. at 678 (2009) (citing *Twombly*, 550 U.S. 555). In sum, the pleading's non-conclusory factual allegations and reasonable inferences therefrom must plausibly show—

not merely allege—the plaintiff's right to relief. *Id.* at 678–79.

B. No Conversion to a Motion for Summary Judgment

In its motion, Defendants request the Court render summary judgment if it chooses not to render a judgment on the pleadings.²⁸ A court must convert a Rule 12(c) motion to a Rule 56 motion when it chooses to consider matters outside the pleadings. Fed. R. Civ. P. 12(d). The court's discretionary choice to consider extraneous materials and convert the motion “depends on whether ‘the conversion ... facilitates the disposition of the case.’ ” *Intell. Ventures II LLC v. FedEx Corp.*, No. 2:16-CV-00980-JRG, 2017 WL 6002762, at *1 (E.D. Tex. Dec. 1, 2017) (Gilstrap, J.) (quoting *Woods v. City of Galveston*, 5 F. Supp. 2d 494, 497 n.3 (S.D. Tex. 1998)).

Here, Defendants have included a copy of their bylaws in support of their argument for dismissal of Plaintiffs' Count VI claim.²⁹ Because this state law claim should be dismissed due to lack of supplemental jurisdiction, the extraneous material will not facilitate disposition of the case. Therefore, conversion to a Rule 56 motion is unnecessary.

ANALYSIS

A. Count I: Fair Housing Act, 42 U.S.C. § 3617

Section 3617 of Title 42 of the United States Code states:

It shall be unlawful to coerce, intimidate, threaten, or interfere with any person in the exercise or enjoyment of, or on account of his having exercised or enjoyed, or on account of his having aided or encouraged any other person in the exercise or enjoyment of, any right granted or protected by section 3603, 3604, 3605, or 3606 of this title.

*4 Plaintiffs assert that Defendants tried to coerce Mrs. Melinda Garner—presumably a Long Glade Lake resident—to remove her husband from her home and place him in an assistive care facility due to his [Alzheimer's disease](#).³⁰ Plaintiffs state that, when they tried to intervene, Defendants harassed them until they sold or put their houses up for sale.³¹ Plaintiffs also allege that Defendant Brady assaulted Plaintiff Williamson because of his aid of the Garners.³² Plaintiffs claim that Defendants coerced, intimidated, and threatened Plaintiffs because of their aid of the Garners in the Garners' exercise of their [42 U.S.C. §§ 3604 and 3605](#) rights.³³

To be successful on a [Section 3617](#) claim, Plaintiffs need to show both (a) the elements of the applicable statutory provision and (b) discrimination through disparate treatment or disparate impact. [AHF Cmty. Dev., LLC v. City of Dallas](#), 633 F. Supp. 2d 287, 297 (N.D.

[Tex. 2009](#)). [Section 3617](#) prohibits retaliation in housing practices under the federal Fair Housing Act (“FHA”). Accordingly, FHA retaliation claims “are analyzed under the same standards that are applied to [Title VII] retaliation claims.” [Texas v. Crest Asset Mgmt., Inc.](#), 85 F. Supp. 2d 722, 733 (S.D. Tex. 2000). To establish the elements of the statutory provision, Plaintiffs must show: “(1) that the plaintiff was engaged in an activity protected by the Fair Housing Act; (2) that the defendant took some adverse action against the plaintiff; and (3) that a causal connection existed between the protected activity and the adverse action.” [N.A.A.C.P. v. City of Kyle, Tex.](#), No. A-05-CA-979-LY, 2009 WL 6574497, at *4 (W.D. Tex. Mar. 20, 2009), *aff'd*, 626 F.3d 233 (5th Cir. 2010). As Plaintiffs’ complaint does not show that their claims meet these statutory elements, assessment of whether they demonstrate discrimination is unnecessary.

1. Protected Activity

[Section 3617](#) protects people from intimidation, threats, or interference with their housing rights as described in [Sections 3603, 3604, 3605, and 3606](#) (“underlying rights”). The statute protects from a defendant's interference with a plaintiff's underlying rights *or* with the plaintiff's aid or encouragement of a third party in the third party's exercise of his or her underlying rights. Therefore, to show protected activity, a plaintiff must first show the defendant's conduct relates to a violation of plaintiff's underlying rights or—if the plaintiff advocated for a third party—a third party's underlying rights. *See AHF*, 633 F. Supp. 2d at 302–03.

In this case, Plaintiffs claim that Defendants coerced, intimidated, or threatened them because Plaintiffs opposed Defendants' violations of the Garners' underlying rights under Sections 3604 and 3605.³⁴ Plaintiffs' protected activity, then, is their aid or encouragement of the Garners, which comes under Section 3617's third clause. Because determining the first element requires an assessment of whether an underlying-rights violation exists, the assessment here should focus on a violation of the Garners' underlying rights. However, in their motion, Defendants scarcely address the Garners.³⁵ Instead, Defendants argue that Plaintiffs' claim is invalid because they have not established a predicate violation of Plaintiffs' underlying rights.³⁶ Defendants do not address whether Plaintiffs have asserted a violation of the Garners' underlying rights, such as a violation of Section 3604(f)(1), which protects against disability discrimination.

*5 Plaintiffs may have asserted an underlying-rights violation in their complaint,³⁷ but it is unclear whether their assertion is sufficient. However, it is unnecessary to determine the sufficiency of the first element because Plaintiffs' complaint does not adequately plead the second and third elements of retaliation.

2. Adverse Action

Plaintiffs fail to sufficiently plead that Defendants have adversely acted against them. Adverse action must affect the availability—as opposed to habitability—of housing under

Section 3617.³⁸ The statute requires that the defendant's adverse action “make housing unavailable, not merely less habitable.” *AHF*, 633 F. Supp. 2d at 303. Availability relates to accessing or acquiring property, such as through renting or buying a home. *Petty v. Portofino Council of Coowners, Inc.*, 702 F. Supp. 2d 721, 729 (S.D. Tex. 2010) (citing *Cox v. City of Dallas, Tex.*, 430 F.3d 734, 744 (5th Cir. 2005)). In contrast, habitability is “the value or the ability of a resident to enjoy a home[,]” and it generally applies after acquisition of a home. *Id.* (citing *Cox*, 430 F.3d at 744). Claims that a defendant's conduct made a plaintiff's housing less valuable or habitable are not actionable under Section 3617. *See Cox*, 430 F.3d at 740 (stating that the defendant's failure to police a landfill may have decreased home values, but it did not affect availability); *Terry v. Inocencio*, No. 3:11-CV-0660-K-BK, 2014 WL 4686570, at *9 (N.D. Tex. Sept. 2, 2014) (holding that locking out resident or boarding up windows does not affect availability), *report and recommendation adopted*, No. 3:11-CV-0660-K-BK, 2014 WL 4704629 (N.D. Tex. Sept. 22, 2014), *aff'd and remanded*, 633 F. App'x 281 (5th Cir. 2016).

However, courts have recognized a potential exception to this rule. Constructive eviction—a habitability claim—hypothetically could be a sufficient adverse action for the purposes of Section 3617. *AHF*, 633 F. Supp. 2d at 300; *see Cox*, 430 F.3d at 742, 742 n.21 (rejecting “ ‘habitability’ claims that fall short of constructive eviction”). Constructive eviction occurs when a defendant's actions render continued residence at a plaintiff's home “objectively unreasonable.” *AHF*, 633 F. Supp. 2d at 300. It is often effected through a

defendant's "denial of certain essential services related to a dwelling, such as mortgage financing, sewer hookups, zoning approval, or basic utilities," as well as "shut[ting] off the water supply for a significant time[.]" *AHF*, 633 F. Supp. 2d at 300 (quoting *Clifton Terrace Associates, Ltd. v. United Technologies Corp.*, 929 F.2d 714, 719–20 (D.C. Cir. 1991)). However, "incidents that merely ma[k]e a residence less desirable[.]" such as boarding up windows or changing the locks, do not amount to constructive eviction. *AHF*, 633 F. Supp. 2d at 301; *Terry*, 2014 WL 4686570 at *7. Constructive eviction under Texas law requires the tenant's abandonment of a dwelling within a reasonable time. *Terry*, 2014 WL 4686570 at *6 n.4 (citing *Metroplex Glass Ctr. Inc. v. Vantage Props. Inc.*, 646 S.W.2d 263, 265 (Tex. App.—Dallas 1983)).

*6 Constructive eviction could be created by a defendant's pattern of harassment. In *AHF Community Development v. City of Dallas*, the plaintiffs argued that they were constructively evicted when city police officers "treated [them] in an overbearing, obnoxious and/or disrespectful manner" while conducting a code enforcement inspection. 633 F. Supp. 2d at 300–01. Although the court held that the one-time raid did not amount to constructive eviction, it considered that harassment potentially could cause the level of objective unreasonableness necessary for constructive eviction. *See id.* Another court has held that a pattern of extreme harassment constituted retaliation under Section 3617. *Texas v. Crest Asset Mgmt., Inc.*, 85 F. Supp. 2d 722, 733 (S.D. Tex. 2000) (finding retaliation when apartment management intentionally did not pay tenant for water leak damage, tried

three times to have him arrested for telling authorities about housing difficulties, cut off electricity to apartment on forty occasions, and made bomb and death threats).³⁹

Plaintiffs' factual allegations are not sufficiently pled to support the existence of adverse action. In their complaint, Plaintiffs make two factual allegations of Defendants' adverse action. First, Plaintiffs state that Defendants discriminated "against handicapped and elderly residents to the extent that continuation of their residence in homes they [sic] have been made untenable."⁴⁰ Plaintiffs make the general allegation that, "[i]n response to their defense of Mrs. Garner, both Plaintiffs were continually harassed until they sold their properties or had offered them for sale."⁴¹ Second, Plaintiffs more specifically contend that Brady assaulted Williamson "[i]n response to [Williamson's] defense of Mrs. Garner and her husband[.]"⁴² Outside of this allegation against Brady, Plaintiffs provide no other details about the harassment they allege. In sum, Plaintiffs allege that Defendants' harassment made their continued residence at Long Glade Lake objectively unreasonable, which amounts to constructive eviction. This constructive eviction is Plaintiffs' alleged adverse action.

In their motion, Defendants argue that Plaintiffs impermissibly base their claim on a decrease in habitability, rather than availability, of their homes.⁴³ Defendants further contend that Plaintiffs' allegations do not show harassment rose to the level necessary for constructive eviction.⁴⁴ The Plaintiffs' allegations will be assessed as to each Plaintiff.

First, the factual allegations do not support Defendants' conduct as creating constructive eviction for Plaintiff Williamson. Harassment through physical assault could rise to the level of constructive eviction. However, the complaint demonstrates that Mr. Williamson has not moved from Long Glade Lake.⁴⁵ Since constructive eviction requires that the resident abandon the dwelling,⁴⁶ and there is no evidence of abandonment, constructive eviction is not a viable adverse action for Mr. Williamson's claim. As constructive eviction is the only adverse action Plaintiffs have alleged, Plaintiffs have failed to sufficiently plead the second element of retaliation as to Williamson.

*7 Steele is therefore the sole Plaintiff with a viable claim because she appears to have moved from Long Glade Lake.⁴⁷ However, she also fails to sufficiently allege adverse action. Steele claims that Defendants harassed her "continually" until she sold her Long Glade Lake home.⁴⁸ There are no allegations as to who specifically harassed her, how she was harassed, when she was harassed, how many times she was harassed, or the severity of harassment.

At least some "factual enhancement" is necessary for the complaint to meet the [Rule 8](#) pleading burden. [Iqbal](#), 556 U.S. at 678 (quoting [Twombly](#), 550 U.S. at 557). Although a pleading "does not require 'detailed factual allegations,'" it must include "more than an unadorned, the-defendant-unlawfully-harmed-me accusation." *Id.* (quoting [Twombly](#), 550 U.S. at 555). For example, in *Cox v. Phase III, Investments*, the court found that a pro

se plaintiff did not sufficiently plead his complaint as to the third element (causal connection) of [Section 3617](#) retaliation. [No. CIV.A. H-12-3500](#), 2013 WL 3110218, at *10 (S.D. Tex. June 14, 2013). Specifically, the Court stated that the plaintiff "generally alleged that Defendants actually evicted him in retaliation for his complaints and reports of conditions to the City but fail[ed] to provide some details as to when, to whom, and about what." *Id.* Plaintiffs have similarly failed to provide any factual basis supporting their general allegations of harassment.

At least some detail is necessary to show that the harassment rose to the level of constructive eviction. Courts have held that some actions, like locking out a tenant from his or her apartment, do not constitute constructive eviction,⁴⁹ but other actions—including those that create a pattern of harassment—do.⁵⁰ Here, Plaintiffs do not need to plead every possible detail; they simply need to provide some factual allegations outside of a generalized 'the-defendant-unlawfully-harassed-me' accusation. See [Iqbal](#), 556 U.S. at 678. However, Plaintiffs have not shown through any meaningful facts that Defendants' harassment made continued residence at Long Glade Lake objectively unreasonable for Steele. Instead, the complaint only gives conclusory statements on this element. Therefore, Plaintiffs have not sufficiently pled their case as to Steele. See [Iqbal](#), 556 U.S. at 678 (2009) ("Threadbare recitals of the elements of a cause of action, supported by mere conclusory statements, do not suffice."). Because Plaintiffs' allegations supporting adverse action are merely conclusory, the

complaint does not show that that Defendants adversely acted against either Plaintiff.

3. Causal Connection

Even if Plaintiffs had sufficiently pled adverse action, they have not provided more than conclusory allegations that the adverse action was causally connected to attempts to aid the Garners in exercising their FHA rights. Circumstantial evidence of temporal proximity between the protected activity and the adverse action can establish the causal connection element. *Phase III*, 2013 WL 3110218, at *10; *Chavez*, 122 F. Supp. 3d at 600.

*8 Here, Plaintiffs do not demonstrate temporal proximity. While Plaintiffs give the date of July 18, 2017 for Brady's assault of Williamson,⁵¹ they do not state when Plaintiffs began advocating for the Garners, which is Plaintiffs' asserted protective activity. There are no dates connected to Plaintiffs' protected activity, other acts of harassment, or when Steele moved from Long Glade Lake. Consequently, Plaintiffs do not demonstrate how close in time the adverse action occurred after the protected activity. The complaint does not contain sufficient factual allegations of causal connection.

Plaintiffs have failed to sufficiently plead the second and third elements of their [Section 3617](#) retaliation claim. The Court therefore **RECOMMENDS DISMISSING** Count I under [42 U.S.C. § 3617](#) with prejudice.

B. Counts IV, V, VI, & VII: State Law Claims

When a court has dismissed the pending federal claims before it, it may decline to exercise supplemental jurisdiction over the remaining state claims. [28 U.S.C. § 1367\(c\)\(3\)](#); *St. Germain v. Howard*, 556 F.3d 261, 263 (5th Cir. 2009). However, a court may choose to exercise supplemental jurisdiction over some state-law claims and dismiss others without prejudice. *Southerland v. Hardaway Mgmt. Co.*, 41 F.3d 250, 256–57 (6th Cir. 1994); *Espinoza v. Galardi S. Enterprises, Inc.*, No. 14-21244-CIV-GOODMAN, 2018 WL 1729757, at *12–13 (S.D. Fla. Apr. 10, 2018) (collecting cases). While this approach is unusual, it is permissible. *Southerland*, 41 F.3d at 257; *Espinoza*, 2018 WL 1729757, at *12. Here, the Court recommends exercising supplemental jurisdiction over Count IV, but not Counts V, VI, and VII.

1. Count IV: [Tex. Prop. Code § 301.171](#)

Supplemental jurisdiction should be exercised over Count IV because the statute, while containing similar rights to those in [Section 3617](#), is nevertheless unenforceable in this case. In Count IV, Plaintiffs allege that Defendants violated their rights under the Texas Fair Housing Act (“TFHA”), [Tex. Prop. Code § 301.171](#).⁵² Section 3617 under the FHA and Section 301.171 under the TFHA protect substantially similar rights through prohibiting retaliatory conduct in housing practices. However, they do not provide equivalent relief, as the FHA permits monetary and injunctive relief, but the TFHA provision

provides a criminal penalty. *Crest*, 85 F. Supp. 2d at 733; compare 42 U.S.C. § 3613 (describing relief for private enforcement of FHA) with *Tex. Prop. Code § 301.171* (classifying housing retaliation as a Class A misdemeanor).

“Criminal statutes cannot be enforced in a civil action.” *Richardson v. Avery*, No. 3:16-CV-2631-M-BH, 2018 WL 5269860, at *5 (N.D. Tex. Oct. 1, 2018) (collecting cases as to federal statutes), *report and recommendation adopted sub nom. Richardson v. Avery #994*, No. 3:16-CV-2631-M, 2018 WL 5267577 (N.D. Tex. Oct. 23, 2018); *id.* at *6 (applying principle to Texas criminal statutes). Here, because *Section 301.171* provides a criminal penalty as a remedy, Plaintiffs cannot bring a claim under this statute.

Even if *Section 301.171* did provide a viable remedy, their TFHA claim should still be dismissed with prejudice. They have failed to plead an FHA claim, and because the TFHA “provides ‘rights ... substantially equivalent to those granted under federal law[,]’ ” their TFHA claims are similarly insufficient. *Houston v. DTN Operating Co., LLC*, No. 4:17-CV-00035, 2017 WL 4653246, at *4 (E.D. Tex. Oct. 17, 2017) (quoting *Chavez v. Aber*, 122 F.Supp. 3d 581, 601 (W.D. Tex. 2015)). The Court therefore **RECOMMENDS DISMISSING** Plaintiffs’ Count IV claim under *Tex. Prop. Code § 301.171* with prejudice.

2. Counts V, VI, & VII: Remaining State Law Claims

*9 The Court recommends declining to exercise supplemental jurisdiction over the remaining state claims. See 28 U.S.C. § 1367(c) (3) (permitting such a decision when federal claims are dismissed); *St. Germain*, 556 F.3d at 263. Therefore, the Court **RECOMMENDS DISMISSING** Counts V, VI, and VII under *Tex. Prop. Code § 301.026*, *Tex. Prop. Code § 209.016*, and state common law, respectively, without prejudice.

RECOMMENDATION

For the foregoing reasons, the Court **RECOMMENDS GRANTING IN PART** Defendants’ Motion for Partial Judgment on the Pleadings (Doc. No. 33). Specifically, the Court recommends **DISMISSING WITH PREJUDICE** Count I (42 U.S.C. § 3617) and Count IV (*Tex. Prop. Code § 301.171*) and **DISMISSING WITHOUT PREJUDICE** Count V (*Tex. Prop. Code § 301.026*), Count VI (*Tex. Prop. Code § 209.016*), and Count VII (Texas common law claims).

Within fourteen days after receipt of the Magistrate Judge's report, any party may serve and file written objections to the findings and recommendations of the Magistrate Judge. 28 U.S.C. § 636(b). A party's failure to file written objections to the findings, conclusions, and recommendations contained in this Report within fourteen days after service shall bar that party from de novo review by the District Judge of those findings, conclusions, and recommendations, and except upon grounds of plain error, from attacking on appeal the unobjected-to proposed factual findings and legal conclusions accepted and adopted by the

district court. *Douglass v. United Services Auto. Assn.*, 79 F.3d 1415, 1430 (5th Cir. 1996) (en banc), *superseded by statute on other grounds*, 28 U.S.C. § 636(b)(1) (extending the time to file objections from ten to fourteen days).

So ORDERED and SIGNED this 28th day of May, 2021.

All Citations

Not Reported in Fed. Supp., 2021 WL 2491800

Footnotes

- 1 Defs.' Mot. Partial J. Pleadings & Alt. Mot. Partial Summ. J., Doc. No. 33.
- 2 Defendants request the Court dismiss four claims with prejudice and one claim without prejudice. The Court recommends granting the motion in part by dismissing two claims with prejudice and three claims without prejudice.
- 3 Am. Compl., Doc. No. 22 at ¶¶ 4–6.
- 4 The parties dispute whether LGL is a for-profit or nonprofit corporate entity. *Compare* Compl., Doc. No. 22 at ¶ 3 (stating the nonprofit LGL converted to a for-profit corporation in February 2019) *with* Defs.' Ans. Pls.' Am. Compl., Doc. No. 25 at ¶ 3 (denying Plaintiffs' assertion of conversion) *and* Mot. J. Pleadings, Doc. No. 33 at 3 (stating LGL is a nonprofit corporation).
- 5 Mot. J. Pleadings, Doc. No. 33 at 2, 3; Compl., Doc. No. 22 at ¶¶ 1–2; *see id.* at ¶ 8.
- 6 *See* Mot. J. Pleadings, Doc. No. 33 at 3; Compl., Doc. No. 22 at ¶¶ 1–2.
- 7 Mot. J. Pleadings, Doc. No. 33 at 3; Compl., Doc. No. 22 at ¶ 1.
- 8 Compl., Doc. No. 22 at ¶¶ 7, 16.
- 9 *Id.* at ¶¶ 24–33, 48–54 (alleging violations of 42 USC § 3617 and Tex. Prop. Code § 301.171).
- 10 *Id.* at ¶¶ 56–61.
- 11 *Id.* at ¶¶ 63–66.
- 12 *Id.* at ¶¶ 68–74 (alleging violations of various Texas torts).
- 13 Ord., Doc. No. 32 (accepting report and recommendation and dismissing Counts II and III).

- 14 Compl., Doc. No. 1; Defs.' Partial Mot. Dismiss R. 12(b)(6), Doc. No. 4.
- 15 Audio Record, July 21, 2020 Scheduling Conference, at 9:35:40–9:36:37.
- 16 *Id.*
- 17 Ord. Show Cause, Doc. No. 18.
- 18 Mot. Leave Amend Compl. & Mem. Supp. Pls.' Mot., Doc. No. 19; Defs.' Resp. Opp'n Mot. Leave Amend Compl., Doc. No. 20; Ord., Doc. No. 21.
- 19 Compl., Doc. No. 22; Defs.' Second Partial Mot. Dismiss Am. Compl. Rule 12(b)(6), Doc. No. 24.
- 20 Second Ord. Show Cause, Doc. No. 26.
- 21 *Id.* at 2.
- 22 Pls.' Resp. Defs.' Partial Mot. Dismiss Am. Compl., Doc. No. 27.
- 23 R. & R. of U.S. Magistrate Judge, Doc. No. 31.
- 24 Ord. Accepting R. & R., Doc. No. 32.
- 25 Mot. J. Pleadings, Doc. No. 33.
- 26 Mot. J. Pleadings Proposed Ord., Doc. No. 33-2; *see generally* Mot. J. Pleadings, Doc. No. 33.
- 27 Second Ord. Show Cause, Doc. No. 26.
- 28 Mot. J. Pleadings, Doc. No. 33 at 2.
- 29 Mot. J. Pleadings Ex. A, Doc. No. 33-1; Mot. J. Pleadings, Doc. No. 33 at 12–14; *see also id.* at 14 n.4.
- 30 Compl., Doc. No. 22 at ¶ 26.
- 31 *Id.* at ¶ 31.
- 32 *Id.* at ¶ 32.
- 33 *Id.* at ¶ 33.
- 34 Compl., Doc. No. 22 at ¶ 33.
- 35 Mot. J. Pleadings, Doc. No. 33 at 7–11.
- 36 *Id.*

- 37 Plaintiffs provide some non-conclusory allegations on this point. Compl., Doc. No. 22 at ¶¶ 26–29.
- 38 The availability–habitability distinction first arose in the context of a [Section 3604](#) claim, but district courts in this circuit have extended it to apply to [Section 3617](#) as well. See, e.g., [AHF](#), 633 F. Supp. 2d at 302–03 (explaining Fifth Circuit precedent supporting this extension).
- 39 This opinion was entered five years before [Cox v. City of Dallas](#), 430 F.3d 734 (5th Cir. 2005) made the availability–habitability distinction.
- 40 Compl., Doc. No. 22 at ¶ 8. While the statement is confusingly vague, it seems Plaintiffs refer to their own residence—rather than the Garners’—being made untenable.
- 41 *Id.* at ¶ 31.
- 42 *Id.* at ¶ 32.
- 43 Mot. J. Pleadings, Doc. No. 33 at 8–9 (arguing in the context of a [Section 3604](#) underlying-right violation).
- 44 *Id.* at 9–10.
- 45 Compl., Doc. No. 22 at ¶ 5 (stating that Williamson purchased a home at 13,000 County Road 2127, Lot 30, Henderson, Texas 75652 according to a lease of property owned by LGL); *id.* at ¶ 19 (stating Williamson currently resides at the same address).
- 46 [Terry](#), 2014 WL 4686570 at *6 n.4 (citing [Metroplex Glass](#), 646 S.W.2d at 265).
- 47 Compl., Doc. No. 22 at ¶ 6 (stating that Steele purchased a home at 13,000 County Road 2127, Lot 30, Henderson, Texas 75652 according to a lease of property owned by LGL); *id.* at ¶ 20 (stating Steele currently resides at 3372 FM 3310, Henderson, Texas 75654).
- 48 *Id.* at ¶ 31.
- 49 [Terry](#), 2014 WL 4686570 at *7.
- 50 See, e.g., [Crest](#), 85 F. Supp. 2d at 733 (noting numerous facts evincing a pattern of harassment were direct evidence of FHA retaliation); [Chavez](#), 122 F. Supp. 3d at 600 (stating complaint's showing of “relentless hostility and harassment” through filing suits for eviction, calling Animal Control Services, and refusing to

offer a renewed lease after Plaintiffs requested disability accommodation was direct evidence of FHA retaliation).

51 Compl., Doc. No. 22 at ¶ 16.

52 Compl., Doc. No. 22 at ¶¶ 48–54.

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